

EXPERT REPORT

Prepared for the Technology and Construction Court and served in the criminal proceedings
CPR Part 35 and PD35 / Criminal Procedure Rules Part 19

REPORT OF DR ELLIS VANTREASE

On the cause of the collapse of loading bay LB-7, Brackenmoor Wharf, 14 November 2023

Expert	Dr Ellis Marchmont VANTREASE BEng PhD CEng FStructE
Instructed by	Ashen & Fyfe LLP on behalf of Coldbrook Capital LLP. Subsequently adopted by the Crown Prosecution Service and served under CrimPR 19.3.
Report	First report. Dated 8 August 2024. 84 pages plus appendices. This is an extract comprising the summary of conclusions, the declaration, and Appendix G.
Site inspection	21 November 2023 (see para. 2.4 below)

SECTION 1 — SUMMARY OF CONCLUSIONS

- 1.1 The primary cause of the collapse was the absence of three through-ties at grid positions E4, E5 and E6 on levels 6 and 7 of the east elevation. Without those ties the cantilevered bay LB-7 had no adequate load path to resist the overturning moment generated by an eccentric load on its outer edge.
- 1.2 The secondary cause was the loading of the bay to approximately 1,410 kg against a design safe working load of 750 kg, a factor of 1.88.
- 1.3 Wind was not a cause. A correctly tied and correctly loaded bay of this configuration would have withstood a gust of 43 mph with a margin of safety in excess of 2.0. I therefore reject the suggestion that this was a weather event.
- 1.4 The certificate TWDC-BW-07, stating a safe working load of 2,000 kg, is not capable of being the product of any competent Category 2 check. No competent engineer could have arrived at 2,000 kg for this configuration. I have carried out the check myself and obtain 780 kg, which corroborates drawing SD-BW Rev. C.
- 1.5 Had the ties been installed and had the bay been loaded to 750 kg, the collapse would not have occurred. Had the ties been installed and had the bay been loaded to 1,410 kg, the bay would probably have deflected visibly but would probably not have collapsed. Had the ties been absent and the bay loaded to 750 kg, the bay would probably have collapsed within days.
- 1.6 The system of temporary works control operated by Meridian Structures Limited was, in my opinion, not merely inadequate but was so far below what any competent principal contractor would operate as to amount to a gross breach of the duty owed. The concentration of the roles of Temporary Works Coordinator, Appointed Person and Permit Issuing Officer in a single individual removed every independent check in the system.
- 1.7 In my opinion the conduct of Mr Ferris in signing the director approval page of lifting plan LP-BW-11, which set a wind trigger above the crane manufacturer's limit, and in sending the message of 13 November 2023 at 20:03, was grossly negligent and was a substantial cause of Mr Wieczorek's death.

SECTION 2 — BASIS OF THE OPINION (extract)

- 2.1 I have been provided with the documents listed at Appendix A. I have not been provided with the TowerLine tablet extraction, which I understand exists.
- 2.2 My conclusion at 1.1 rests on the survey of the recovered structure carried out by HSE and on 214 photographs. All 214 photographs were supplied to me by my instructing solicitors, Ashen & Fyfe LLP. I have not seen the photographs taken by HSE or by West Yorkshire Police.
- 2.3 I have assumed, on instruction, that drawing SD-BW Rev. C was the controlled revision on site on 14 November 2023. I understand this is in dispute. If Rev. B (1,000 kg) governed, my figure at 1.2 becomes a factor of 1.41 rather than 1.88, but my conclusion at 1.1 is unaffected.
- 2.4 I attended the site on 21 November 2023. By that date the recovered scaffold components had been removed from the yard slab and were stored in a skip compound. They had not been individually tagged or mapped to their original positions. I

have therefore been unable to verify the position of any individual component myself and have relied on the HSE survey for that.

2.5 I have assumed on instruction that the covert recording at D20.2 is an accurate record of what was said. Paragraph 6.19 of my full report relies on the passage at 02:40 of that recording.

SECTION 3 — DECLARATION (CPR PD35 para. 3.2 / CrimPR 19.4)

- I understand that my duty is to help the court on matters within my expertise and that this duty overrides any obligation to those instructing me. I have complied and will continue to comply with that duty.
- I have set out in my report those matters of which I have personal knowledge and those which are within my expertise, and I have made clear which are which.
- I have drawn to the attention of the court all matters of which I am aware which might adversely affect my opinion.
- Where there is a range of opinion I have summarised it and given reasons for my own opinion.
- I confirm that I have not entered into any arrangement where the amount or payment of my fees is in any way dependent on the outcome of the case.
- I believe the facts stated in this report are true and that the opinions expressed are correct.

Signed:

E. M. Vantrease

Name / role:

E. M. Vantrease — CEng FIStructE

Date:

8 August 2024

APPENDIX G — DISCLOSURE OF INTERESTS

This appendix was not served with the report on 8 August 2024. It was served on 3 March 2025 following a request from Meridian's solicitors under CPR 35.10(4) for the substance of the instructions and for disclosure of any interest. It is reproduced in full.

G1 I am the sole shareholder and a director of Vantrease Forensic Limited (company no. 09912284), through which all my expert work is undertaken.

G2 Vantrease Forensic Limited has, since 1 April 2021, held a framework consultancy agreement with Coldbrook Holdings S.à r.l., the Luxembourg parent undertaking of Coldbrook Capital LLP. Fees invoiced under that framework were £404,000 in the year to 31 March 2023 and £438,000 in the year to 31 March 2024. That represents approximately 61% of the company's turnover.

G3 The framework agreement is for technical due diligence on prospective acquisitions. It is unconnected with this dispute. I did not consider it necessary to disclose it in my report because it does not concern this project.

G4 My fees for this instruction are charged at £480 per hour. Clause 6 of my terms of engagement, which were countersigned by Ashen & Fyfe LLP on 14 February 2024, provides: 'In the event that the Client's claim succeeds in whole or in substantial part, a success uplift of 25% of fees billed shall be payable.' I did not draft that clause. I did not read clause 6 before signing. I became aware of it on 27 February 2025. I have written to my instructing solicitors asking that it be removed. It has not been removed.

G5 I gave evidence for a party represented by Ashen & Fyfe LLP in three previous matters (2019, 2021 and 2023).

G6 I have no interest in the outcome of these proceedings and my opinions are my own.

ANNEX — CORRESPONDENCE ARISING FROM APPENDIX G

Letter, Halloway Brant LLP to Ashen & Fyfe LLP, 10 March 2025, extract:

“Your expert's evidence must be excluded. A 25% success uplift is precisely the arrangement condemned in Gardiner & Theobald LLP v Jackson and is irreconcilable with the declaration he signed on 8 August 2024, in which he stated in terms that his fees were not dependent on the outcome. That declaration was, on his own account, untrue when made. A 61% financial dependence on the claimant's parent company is a further and independent objection: see Liverpool Roman Catholic Archdiocesan Trustees Inc v Goldberg (No.3) and Toth v Jarman. We also object to paragraph 1.7, which is an opinion on the ultimate issue of gross negligence and usurps the function of the jury: R v Stockwell; Pora v The Queen. We invite you to withdraw the report.”

Letter in reply, Ashen & Fyfe LLP, 21 March 2025, extract:

“Interest goes to weight, not admissibility, and the modern approach in Toth v Jarman and in EXP v Barker is fact-sensitive. The uplift clause was included in error by a fee-earner using an outdated precedent and our client has confirmed in writing that it will not be enforced. Dr Vantrease's opinion is unaffected. As to paragraph 1.7, we will invite the court to treat it as surplusage rather than to exclude the report. We do not withdraw it.”

Procedural note. No order was made under CPR 35.4 giving permission for expert evidence in the TCC proceedings until 16 April 2025. Dr Vantrease's report was served on 8 August 2024, before permission was granted. In the criminal proceedings, service was effected under CrimPR 19.3(3)(c) on 2 September 2024. No single joint expert was proposed. Meridian has permission to rely on Prof. Danecourt (D20.1), which it obtained on 16 April 2025 in the same order.